

Ankit Gupta v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 15 March 2019 · Writ-C No. 8392 of 2019 · WRIT - C No. - 8392 of 2019 · **Writ disposed of; relegated to s.127 appeal; one-week stay of recovery.**

HEADNOTE

The Allahabad High Court declined to interfere with a compounding order and final assessment for electricity theft, holding that an efficacious appeal under Section 127 lay. The writ was disposed of with a direction that a Section 127 appeal, if preferred, shall not be thrown out merely on delay, and with a one-week stay of coercive action under the recovery citation dated 10 December 2018. The order ascribes Section 127 to the Electricity Supply Code, 2005; Section 127 is of the Electricity Act, 2003.

FACTUAL SUMMARY

Ankit Gupta approached the Allahabad High Court against a compounding order for theft of electricity, made pursuant to an order dated 30 April 2018 in Criminal Writ Petition No. 10939 of 2018. A final assessment had also been drawn against him and a recovery citation dated 10 December 2018 was in the field. After a 12 March 2019 listing for instructions, the Division Bench heard the petition on 15 March 2019.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

alternative remedy — appeal against final assessment for theft

HOLDING

Where a final assessment for theft of electricity has been made, a writ challenging the compounding order will not be entertained because an efficacious appeal under Section 127 is available; the assessee is relegated to that appeal. If the appeal is preferred, it shall not be thrown out merely on the ground of delay. Coercive action on the recovery citation was stayed for one week to enable filing. ¶ 2

FLAG Order ascribes Section 127 to the Electricity Supply Code, 2005; Section 127 is of the Electricity Act, 2003.

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 Writ against compounding and final assessment for theft not entertained; petitioner relegated to the statutory Section 127 appeal, with a direction that delay alone shall not defeat the appeal. ¶ 2

final-assessment-order-relegates-assessee-to-section-127-appeal Court recorded that final assessment had been made and therefore the Section 127 appeal lay; it declined writ interference on that footing. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF COMPOUNDING AND OF THE FINAL ASSESSMENT FOR THEFT

Not examined; petitioner relegated to the statutory appeal. ¶ 2